

Amendment No. 1 to HB1201

Terry
Signature of Sponsor

AMEND Senate Bill No. 1054*

House Bill No. 1201

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-6-207(g), is amended by deleting the subsection and substituting:

(g)

(1) As used in this subsection (g):

(A) "Employer" means an entity, corporation, or organization, whether for profit or nonprofit, that furnishes, bills, or is paid for a healthcare procedure or service delivery in the normal course of business; and

(B) "Supervising physician" means a board-certified, qualified physician who holds an active medical license under chapter 6 or 9 of this title and practices medicine in the same specialty as the internationally trained physician.

(2) Barring any disqualifications determined by the board, the board shall issue a provisional foreign training license of limited duration to an internationally licensed physician who has successfully completed the examinations as described in subsection (b) upon finding sufficient evidence that the internationally licensed physician:

(A) Possesses:

(i) A certificate or diploma from a medical school that:

(a) Meets the board's standards for an approved international medical school; or

(b) Is judged to be acceptable by the board;

(ii) A copy of a permanent ECFMG certificate; and

(iii) Evidence that the internationally licensed physician completed Step 1 and Step 2 of the United States Medical Licensing Examination (USMLE);

(B) Completed a postgraduate training program of a minimum of three (3) years in a country approved by the internationally licensed physician's licensing country;

(C) Has practiced as a medical professional performing the duties of a physician for at least one (1) additional year in the licensing country after the postgraduate training;

(D) Has been in good standing with the medical licensing board or medical institution of the internationally licensed physician licensing country within the last five (5) years and does not have any pending discipline before the licensing body;

(E) Has proof of United States citizenship or being lawfully present in the United States pursuant to § 4-58-103;

(F) Has sufficient evidence of good moral character; and

(G) Has paid a nonrefundable application fee of two hundred dollars (\$200).

(3) An applicant under subdivision (g)(1) shall submit sufficient evidence that the applicant is an internationally licensed physician and has an offer for employment as a physician at an employer identified in subdivision (g)(3) that operates in this state.

(4)

(A) The board is authorized to identify the type of employer and clinical facilities authorized to employ and allow for a supervising physician to supervise and assess the skills and competency of an internationally trained physician during the internationally trained physician's foreign training license period and establish criteria and guidelines for such type of employers and authorized clinical facilities.

(B) The type of employer must include:

(i) A federally qualified health center, as defined in § 63-6-204, with an onsite supervising physician;

(ii) A rural health clinic, as defined in § 63-6-204, with an onsite supervising physician;

(iii) A community health center, as defined in Pub. L. No. 110-355, § 2(b)(A), with an onsite supervising physician;

(iv) An employer with a postgraduate training program accredited by the accreditation council for graduate medical education; and

(v) A supervising physician employer approved by the board upon consideration of the practice and training opportunities, including clinic and hospital experience.

(C) The board shall define any additional types of employer based on factors, including:

(i) Experience in medical education and assessment;

(ii) The ability to obtain a supervising physician to oversee and assess skills; and

(iii) Training resources, including clinic and hospital experience.

(5) An internationally licensed physician who is granted a foreign training license under subdivision (g)(1) shall only provide medical services at an employer identified in subdivision (g)(3) during the period of the foreign training license unless the licensee notifies the board of a change of eligible employer.

(6) Barring any disqualifications determined by the board, the board shall grant a full and unrestricted license to practice medicine to a foreign training licensee under subdivision (g)(1) who is in good standing, demonstrates competency, has passed Steps 1, 2, and 3 of the USMLE, and has actively practiced medicine in this state for two (2) years after the date of foreign training licensure.

(7) The board is encouraged to collect and share data on the foreign training license pathway to evaluate the pathway's effectiveness.

SECTION 2. The board of medical examiners is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 31, 2026, the public welfare requiring it.